



OFFICE OF THE POLICE COMMISSIONER

ONE POLICE PLAZA • ROOM 1400

October 28, 2008

Memorandum for: Deputy Commissioner, Trials

Re: **Police Officer James Williams**
Tax Registry No. 929363
Quartermaster Section
Disciplinary Case No. 81822/06

The above named member of the service appeared before Assistant Deputy Commissioner Robert W. Vinal on February 20, 2008 and was charged with the following:

DISCIPLINARY CASE NO. 81822/06

1. Said Police Officer James Williams, assigned to School Safety Division, while off-duty, on or about April 29, 2006, did knowingly associate with a person or organization reasonably believed to be engaged in, likely to engage in or to have engaged in criminal activities.

P.G. 203-03, Page 1, Paragraph 2(c)

GENERAL REGULATIONS

2. Said Police Officer James Williams, assigned as indicated in Specification #1, on or April 29, 2006, was wrongfully in possession of an unauthorized duplicate New York City Police Department shield #29558, without permission or authority to do so.

P.G. 203-10, Page 2, Paragraph 17

GENERAL REGULATIONS

3. Said Police Officer James Williams, assigned as indicated in Specification #1, on or about and between April 1, 2006 through September 30, 2006, did wrongfully and without just cause engage in off-duty employment without authority or permission to do so. (As amended)

P.G. 205-40, Page 1, Paragraph 1

**OFF-DUTY EMPLOYMENT
PERSONNEL MATTERS**

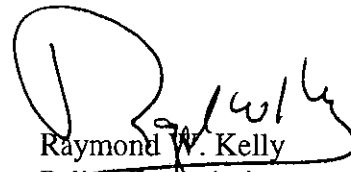
4. Said Police Officer James Williams, assigned as indicated in Specification #1, on or about and between April 1, 2006 through September 30, 2006, in the vicinity of 2420 Pitkin Avenue, Kings County, did wrongfully and without just cause engage in off-duty employment in excess of twenty (20) hours per week. (As amended)

**P.G. 205-40, Page 6, Paragraph (c)(4) Additional Data General Prohibitions(a)
OFF DUTY EMPLOYMENT**

In a Memorandum dated June 5, 2008, Assistant Deputy Commissioner Vinal accepted the Respondent's PLEADING GUILTY to Specification Nos. 2, 3 and 4, and dismissed Specification No. 1.

Having read the Memorandum and analyzed the facts of these instant matters, I approve the findings, but disapprove the recommended penalty.

The Respondent's acts of misconduct, combined with his poor background and performance evaluations, as offered by two separate Commanding Officers, merits the forfeiture of the entire 30 Suspension day period he has already served.



Raymond W. Kelly
Police Commissioner



OFFICE OF THE POLICE COMMISSIONER

ONE POLICE PLAZA • ROOM 1400

October 28, 2008

Memorandum for: Chief of Personnel

Subject: **ADMINISTRATIVE TRANSFER, AND TRANSFER
RESTRICTION OF A UNIFORMED MEMBER OF THE
SERVICE**

1. P.O. James Williams, Tax # 929363, was recently the subject of Disciplinary Case No. 81822/06.
2. Separate and apart from the disciplinary process, the Police Commissioner also mandates that P.O. Williams be transferred to a P.S.B. Precinct enforcement command located outside the geographic confines of Brooklyn. Further, **P.O. Williams will not be the subject of any future transfer without the explicit approval of the Police Commissioner.**
3. Forwarded for necessary attention.

BY DIRECTION OF THE POLICE COMMISSIONER

A handwritten signature in black ink, appearing to read "Lowell Stahl".

Lowell Stahl
Assistant Chief
Commanding Officer
Police Commissioner's Office



POLICE DEPARTMENT

June 5, 2008

MEMORANDUM FOR: POLICE COMMISSIONER

Re: Police Officer James Williams
Tax Registry No. 929363
Quartermaster Section
Disciplinary Case No. 81822/06

The above-named member of the Department appeared before me on February 20, 2008, charged with the following:

1. Said Police Officer James Williams, assigned to School Safety Division, while off-duty, on or about April 29, 2006, did knowingly associate with a person or organization reasonably believed to be engaged in, likely to engage in or to have engaged in criminal activities.

P.G. 203-10, Page 1, Paragraph 2(c) - GENERAL REGULATIONS

2. Said Police Officer James Williams, assigned as indicated in Specification #1, on or April 29, 2006, was wrongfully in possession of an unauthorized duplicate New York City Police Department shield #29558, without permission or authority to do so.

P.G. 203-10, Page 2, Paragraph 17 - GENERAL REGULATIONS

3. Said Police Officer James Williams, assigned as indicated in Specification #1, on or about and between April 1, 2006 through September 30, 2006, did wrongfully and without just cause engage in off-duty employment without authority or permission to do so. (*As amended*)

P.G. 205-40, Page 1, Paragraph 1 - OFF-DUTY EMPLOYMENT
PERSONNEL MATTERS

4. Said Police Officer James Williams, assigned as indicated in Specification #1, on or about and between April 1, 2006 through September 30, 2006, in the vicinity of 2420 Pitkin Avenue, Kings County, did wrongfully and without just cause engage in off-duty employment in excess of twenty (20) hours per week. (*As amended*)

P.G. 205-40, Page 6, Paragraph (c)(4) - Additional Data General Prohibitions(a)
OFF DUTY EMPLOYMENT

The Department was represented by Michelle Alleyne, Esq., Department Advocate's Office, and the Respondent was represented by Craig Hayes, Esq.

The Respondent, through his counsel entered a plea of Guilty to the subject charges and testified in mitigation of the penalty. A stenographic transcript of the mitigation record has been prepared and is available for the Police Commissioner's review.

DECISION

The Department moved to dismiss Specification No. 1. The Respondent pleaded Guilty to Specification Nos. 2, 3 and 4. Having pleaded Guilty to those Specifications, the Respondent is found Guilty of those Specifications.

SUMMARY OF EVIDENCE IN MITIGATION

The Respondent, who is presently assigned to modified duties with the Quartermaster Section, testified that he is married and has two children.

The Respondent admitted that he had obtained an unauthorized duplicate Department shield. He explained that his residence is located within the ■ Precinct and that sometimes when he is walking in his neighborhood while off-duty he is stopped and questioned by uniformed officers. Since he does not want his neighbors to know that he is a member of the service (MOS), he carried an unauthorized duplicate Department shield while he was off-duty because he found it "easier and safer" to display this smaller

shield, rather than his actual shield, when he identified himself as a MOS to officers who stopped him.

The Respondent also admitted that he had engaged in off-duty employment in excess of 20 hours per week without having applied for permission to do so. On April 1, 2006, he opened a barbershop on [REDACTED], Brooklyn. He acknowledged that for the next six months he worked at the shop six to seven hours per day because he wanted to insure that no illegal activities were taking place inside the shop. Although he initially had no full time employees, he later hired barbers and he also rented chairs in the shop to other barbers. He also acknowledged that he was familiar with the Department's rules regarding engaging in off-duty employment and the procedures for applying to engage in such employment because he had applied in the past for permission to engage in other off-duty employment. He testified that his failure to apply for permission to engage in off-duty employment as a barber was an oversight on his part.

MOTION TO DISMISS SPECIFICATION NO. 1

The Assistant Department Advocate (hereinafter "Advocate") has moved to dismiss Specification No. 1. The Advocate stated that this charge was brought after [REDACTED] [REDACTED] who was the boyfriend of the Respondent's sister, was arrested for possessing a firearm and told the arresting officer that he had obtained the firearm from the Respondent. The Advocate stated that a subsequent investigation of this matter revealed that [REDACTED] did not obtain the firearm from the Respondent. The Advocate further stated that there is no evidence that the Respondent knowingly associated with a person reasonably believed to be engaged in, likely to engage in or to have engaged in criminal

activities, because the investigation revealed that the Respondent was not aware that [REDACTED] had a criminal record and because the investigation revealed that the Respondent had no personal association with [REDACTED] and that his only contacts with [REDACTED] were a result of [REDACTED]'s relationship with the Respondent's sister.

It is recommended that Advocate's motion to dismiss Specification No. 1 be granted.

PENALTY

In order to determine an appropriate penalty, the Respondent's service record was examined. See *Matter of Pell v. Board of Education*, 34 NY 2d 222 (1974). The Respondent was appointed to the Department on July 2, 2001. Information from his personnel record that was considered in making this penalty recommendation is contained in an attached confidential memorandum.

The Respondent has pleaded guilty to wrongfully engaging in off-duty employment as a barber in excess of 20 hours per week without having applied for permission to engage in this off-duty employment.

In Disciplinary Case No. 81852/06 (penalty imposed by the Police Commissioner on May 11, 2007), a four-year member who had no prior disciplinary record forfeited ten vacation days after he pleaded guilty to having engaged in unauthorized off-duty employment as a disc jockey. Also, in Disciplinary Case No. 82434/06 (penalty imposed on November 27, 2007), a 12-year member who had no prior disciplinary record forfeited ten vacation days after pleading guilty to having engaged in unauthorized off-duty employment as a security guard in excess of 20 hours a week. Finally, in Disciplinary

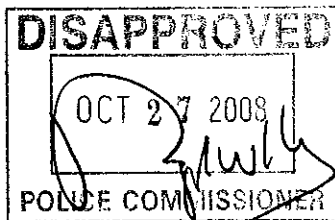
Case No. 80221/04 (penalty imposed on April 1, 2008), a nine-year member who had no prior disciplinary record forfeited nine vacation days after pleading guilty to having engaged in unauthorized off-duty employment as a hospital technician and having worked in excess of 20 hours per week at the hospital.

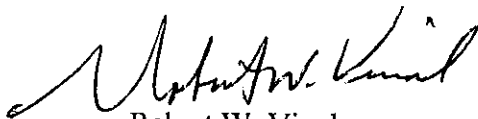
The Respondent here has also pleaded guilty to possessing an unauthorized duplicate Department shield. In Disciplinary Case No. 76355/00 (penalty imposed on January 6, 2001), a seven-year member who had no prior disciplinary record forfeited 15 vacation days after pleading guilty to having engaged in unauthorized off-duty employment as a newspaper deliveryman and possessing an unauthorized duplicate shield.

The Respondent was suspended from April 30, 2006 through May 29, 2006, regarding the allegation that he knowingly associated with a person reasonably believed to be engaged in, likely to engage in or to have engaged in criminal activities, and for possessing an unauthorized duplicate Department shield.

It is recommended that the Respondent forfeit 15 of the 30 suspension days he has already served, and that he be restored all time, pay and benefits lost while on suspension for the remaining 15 days.

Respectfully submitted,




Robert W. Vinal
Assistant Deputy Commissioner - Trials